



Republic of the Philippines
Province of Surigao del Sur
MUNICIPALITY OF CARMEN

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BY: 
MA. JULINA B. JUTILO
SB SECRETARY

TANGGAPAN NG SANGGUNIANG BAYAN

EXCERPTS FROM THE MINUTES OF THE 43RD REGULAR SESSION OF THE 14TH SANGGUNIANG BAYAN OF CARMEN, SURIGAO DEL SUR HELD AT THE SB SESSION HALL, LEGISLATIVE BUILDING ON MAY 26, 2026

PRESENT:

REGULAR SANGGUNIANG BAYAN MEMBERS:

Hon. Carlos S. Estrada		SB Member/ Temporary Presiding Officer
Hon. Harvey S. Manawatao		SB Member
Hon. Tanie A. Quillano		SB Member
Hon. Nilo S. Bigno		SB Member
Hon. Daniel A. Tejol		SB Member
Hon. Elvie U. Ohao		SB Member
Hon. Rencio P. Valeroso		SB Member

EX-OFFICIO MEMBERS:

Hon. Blandena V. Sugian		ABC President
Hon. Jeff Anthony D. Beloria		SK Federation President

ON LEAVE:

Hon. Jane V. Plaza		Municipal Vice- Mayor
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REGULAR SANGGUNIANG BAYAN MEMBER:

Hon. Michael C. Escuyos		SB Member
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ORDINANCE NO. 57
Series of 2026

“AN ORDINANCE REGULATING THE USE OF NATIONAL HIGHWAY SHOULDERS AND ESTABLISHING DESIGNATED PARKING AREAS WITHIN THE MUNICIPALITY OF CARMEN, PROVINCE OF SURIGAO DEL SUR, PROHIBITING ILLEGAL PARKING AND ALL FORMS OF OBSTRUCTION ALONG NATIONAL HIGHWAY, AND PRESCRIBING PENALTIES FOR VIOLATIONS THEREOF”

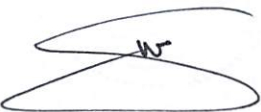
Author: Hon. Nilo S. Bigno

Enacted: All Members Present

EXPLANATORY NOTE

The National Highway serves as a primary transportation route that facilitates the movement of people, goods and services within and beyond the Municipality of Carmen, Province of Surigao del Sur. Its efficient and safe use is essential to public welfare, economic activity and emergency response.

However, the increasing incidence of illegal parking and the obstruction of highway shoulders by various types of vehicles, vendors and other structures has resulted in traffic congestion, reduced



road capacity, and heightened risks to motorists and pedestrians. Highway shoulders are intended for emergency use, temporary stops during vehicle breakdowns and as safety buffer-not for prolonged parking or commercial activities.

These obstructions compromise road safety, delay emergency services and contribute to accidents and disorder along the highway. Without proper regulation, the situation is likely to worsen as vehicle volume and roadside activities continue to increase.

This proposed Ordinance seeks to regulate the use of national highway shoulders and establish a designated parking areas within the jurisdiction of Carmen by prohibiting illegal parking and other forms of obstruction. It establishes clear rules, identifies prohibited acts, and provides corresponding penalties to ensure compliance. The Ordinance also aims to promote discipline among motorists, maintain order and ensure that highway shoulders remain accessible for their intended purposes.

BE IT ORDAINED, by the Sangguniang Bayan of Carmen, Surigao del Sur in Regular Session assembled, that:

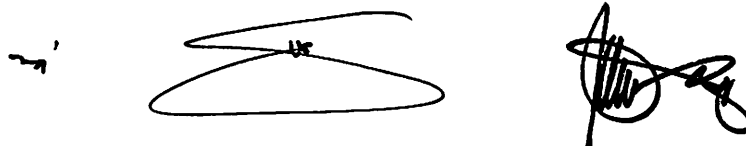
SECTION 1. Title- This Ordinance shall be known as the "National Highway Shoulder Parking Regulation Ordinance of 2026."

SECTION 2. Definition of Terms- The following terms shall mean as:

- 1) National Highway- refers to any road declared as such by the DPWH, designed for fast-moving traffic, maintained by national funds.
- 2) National Highway Shoulder- the portion of the national road adjacent to the main travel lane (carriageway) designed for emergency use, walkway, temporary stopping and safe maneuvering.
- 3) Parking- the standing of a vehicle, whether occupied or not, for a period of time greater that what is necessary to immediately load or unload passengers or cargo.
- 4) Road Right-of-Way (ROW)- the total width of the road including the sidewalk, shoulder and travel lane.
- 5) Obstruction- any vehicle, structure, or item placed, parked, or installed on the shoulder that hampers traffic flow or pedestrian safety.

SECTION 3. Prohibitions- It is strictly prohibited for any person, company or entity to:

- 1) Park any motor vehicle (attended or unattended) on the shoulder of the national highway, except for emergency breakdown situations (provided that Early Warning Devices are used).
- 2) Use the shoulder as a permanent or temporary garage, repair shop, terminal or overnight parking.
- 3) Allow business establishments to use the shoulder for customer parking area.
- 4) Construct, install, or place any structure (including signages, fences, or potted plants) that occupies the shoulder, as per DPWH regulations.
- 5) Dumping of materials (construction materials, soil, agricultural products) on the shoulder).



- 6) Use shoulders for business operators, including displaying of items for sale.

SECTION 4. Exceptions-

- 1) Vehicle stopping momentarily for loading or unloading passengers, provided it does not cause traffic congestion.
- 2) Vehicle stalled due to emergency breakdowns, provided they are equipped with Early Warning Device (EWD) and removed within two (2) hours.
- 3) Emergency vehicles (ambulances, police cars, fire trucks) during emergencies.

SECTION 5. Designated Parking Areas- Business establishments along the national highway must provide off-street parking for their customers.

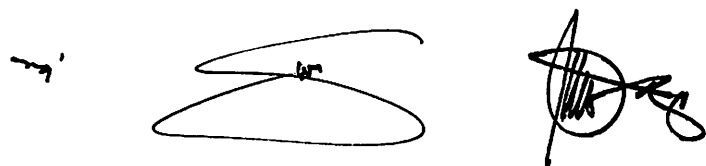
The Municipal Traffic Management Committee (MTMC) identifies and mark designated parking areas for Tricycle Operators and Drivers Association (TODA) units are the following:

- 1) Carmen Public Terminal, Barangay Poblacion, Carmen, Surigao del Sur
- 2) National Highway, corner Kindica Street, Barangay Poblacion, Carmen, Surigao del Sur
- 3) Purok 2, (near San Vicente Elementary School), Barangay San Vicente, Carmen, Surigao del Sur
- 4) Crossing going to Barangay Bunga, Barangay Sta. Cruz, Carmen, Surigao del Sur
- 5) Purok Kamagong (near SUDECOR Entrance Gate), Barangay Puyat, Carmen, Surigao del Sur
- 6) Antao Food Terminal, Barangay Antao, Carmen, Surigao del Sur
- 7) Crossing Carcan-an going to Barangay Cancavan, Carmen, Surigao del Sur
- 8) Public Market, Barangay Esperanza, Carmen, Surigao del Sur

SECTION 6. Enforcement- The Municipal Traffic Management Committee (MTMC) chaired by the Municipal Vice- Mayor, together with the Philippine National Police (PNP) and all Barangay Officials are directed to enforce this Ordinance and issue violation ticket.

SECTION 7. Penalty Clause- Any person or entity found violating this Ordinance shall be penalized as follows:

First Offense	:	A fine of Two Hundred Pesos (Php200.00) and a warning
Second Offense	:	A fine of Five Hundred Pesos (Php500.00) with possible impoundment of the vehicle



Third and Subsequent
Offenses : A fine of One Thousand Five Hundred Pesos
(Php1,500.00), impoundment of the vehicle until the
fine is paid and possible cancellation of business
permit for commercial vehicle

SECTION 8. Repealing Clause- All Ordinances, Resolutions, or parts thereof inconsistent with this Ordinances are hereby repealed or modified accordingly.

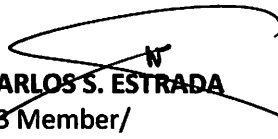
Section 9. Effectivity Clause- This Ordinance shall take effect fifteen (15) days after its posting in at least three (3) conspicuous places in the municipality.

ENACTED this 26th day of May, 2026 at Carmen, Surigao del Sur.

I HEREBY ATTEST to the correctness of the foregoing Ordinance.


MA. JULINA T. BORDA-JUTILO, LLB., J.D.
Secretary to the Sangguniang Bayan

CERTIFIED CORRECT:


CARLOS S. ESTRADA
SB Member/
Temporary Presiding Officer

APPROVED:


NESTOR S. VALEROSO
Municipal Mayor
06/01/2026